

UPSC INDIAN POLITY

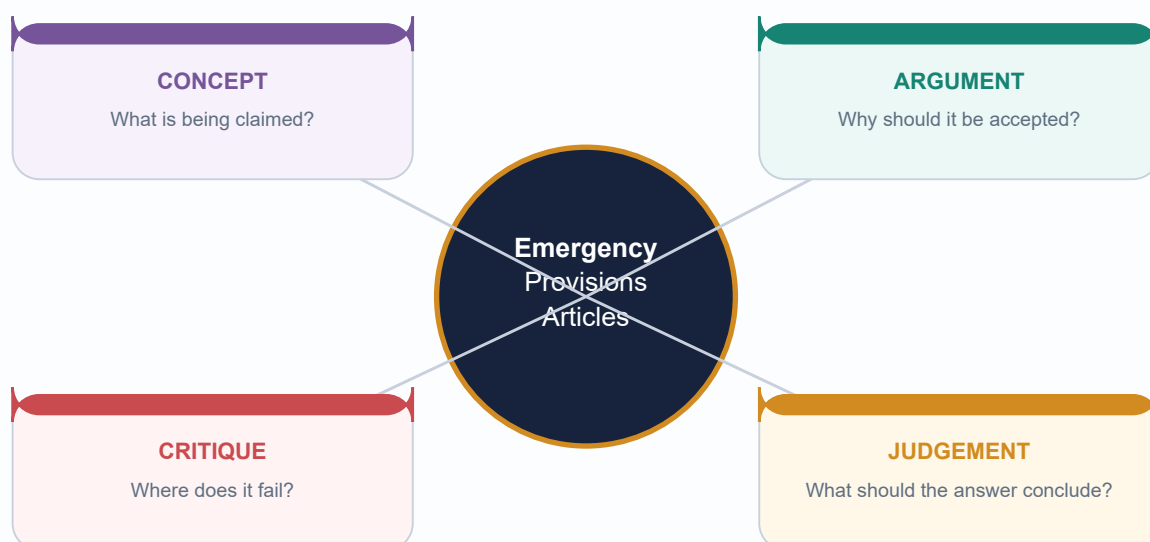
Emergency Provisions (Articles 352–360) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Emergency-Provisions.md + 14_Emergency-Provisions.md

Learning cards: 29



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity • **Tier:** Basic (foundation) • **GS Paper:** GS-II*Foundation learning layer: concepts → constitutional detail → UPSC application.*

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than **Subject:** Polity • **Tier:** Basic (foundation) • **GS Paper:** GS-II

Dimension 2

greater than **Grounded in:** Laxmikant Ch. 16, Part XVIII. □ = from book • □□ = case law • □ = current affairs.

Dimension 3

greater than **Full depth:**
advanced/14Emergency-Provisions.md.

STATIC THEORY

- greater than **Grounded in:** Laxmikant Ch. 16, Part XVIII. □ = from book • □□ = case law • □ = current affairs.
- greater than **Full depth:** advanced/14_Emergency-Provisions.md.

MUST-KNOW FACTS

1. greater than **Grounded in:** Laxmikant Ch. 16, Part XVIII. □ = from book • □□ = case law • □ = current affairs.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Core
Foundation

HIGH

Foundation • Snapshot — 3 emergencies

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Type	Article	Ground
□ National	352	War / external aggression / armed rebellion
□ President's Rule (State)	356	Failure of constitutional machinery in a state
□ Financial	360	Threat to India's financial stability/credit

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Snapshot — 3
emergencies

HIGH**Foundation · Core idea**GS-II Indian
Polity**INTRO & ORIGIN**

□ During an emergency the **federal system turns unitary** without amending the Constitution (Ambedkar). The **44th Amendment (1978)** added most safeguards after the misuse of the **1975 Emergency**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. During an emergency the **federal system turns unitary** without amending the Constitution (Ambedkar). The **44th Amendment (1978)** added most safeguards after the misuse of the **1975 Emergency**.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Core idea

HIGH**Foundation · National Emergency (352) — key numbers**GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the foundation source layer.

KEY DATA

Item	Rule
□ Recommendation	Cabinet in writing (not PM alone)
□ Approval	1 month, special majority
□ Duration	6 months, indefinite renewal
□ Revocation	LS simple-majority disapproval → must revoke
□ Declared	1962, 1971, 1975 (3 times)

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → National
Emergency (352) — key numbers

HIGH

Foundation · National Emergency (352) — key numbers

GS-II Indian Polity

INTRO & ORIGIN

□ **FR effect:** **Art 358** auto-suspends **Art 19** (only in External Emergency); **Art 359** suspends enforcement of specified FRs — but **Art 20 & 21** can **NEVER** be suspended.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. FR effect: **Art 358** auto-suspends **Art 19** (only in External Emergency); **Art 359** suspends enforcement of specified FRs — but **Art 20 & 21** can **NEVER** be suspended.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → National
Emergency (352) — key numbers

HIGH

Foundation · President's Rule (356)

GS-II Indian Polity

INTRO & ORIGIN

□ Approval within **2 months**, **simple majority**; max **3 years**. Beyond 1 year needs a National Emergency + **ECI certification**. CM/CoM dismissed; assembly suspended/dissolved; **HC untouched**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

PRESIDENT'S RULE (356): RECALL MAP

President's Rule (356)

Dimension 1

□ Approval within 2 months, simple majority; max 3 years. Beyond 1 year needs a National Emergency + ECI certification. CM/CoM dismissed; assembly sus

Dimension 2

greater than □ **Bommai (1994)**: Art 356 is judicially reviewable; majority tested on the floor;

Dimension 3

greater than secularism = basic feature; court can restore a dismissed government.

STATIC THEORY

- greater than □ **Bommai (1994)**: Art 356 is **judicially reviewable**; majority tested on the **floor**;
- greater than **secularism = basic feature**; court can **restore** a dismissed government.

MEMORY HOOK

greater than Bommai (1994): Art 356 is judicially reviewable; majority tested on the floor;

MUST-KNOW FACTS

1. Approval within **2 months, simple majority**; max **3 years**. Beyond 1 year needs a National Emergency + **ECI certification**. CM/CoM dismissed; assembly suspended/dissolved; **HC untouched**.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → President's
Rule (356)

HIGH**Foundation · Financial Emergency (360)**GS-II Indian
Polity**INTRO & ORIGIN**

□ Approval **2 months, simple majority**; then **indefinite** (no renewal). Centre can cut salaries of state staff **and SC/HC judges**. □ **Never declared**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Approval **2 months, simple majority**; then **indefinite** (no renewal). Centre can cut salaries of state staff **and SC/HC judges**. **Never declared**.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Financial
Emergency (360)

HIGH**Foundation · Quick contrast**GS-II Indian
Polity**INTRO & ORIGIN**

greater than □ **352 = Special majority + indefinite + affects FRs + LS can revoke**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than □ **356 = Simple majority + max 3 years + no FR effect + President revokes**.

MEMORY HOOK

greater than **352 = Special majority + indefinite + affects FRs + LS can revoke**. | greater than **356 = Simple majority + max 3 years + no FR effect + President revokes**.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Quick contrast

HIGH

Foundation • Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

□ "Internal disturbance" → replaced by "**armed rebellion**" (44th Amdt).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 □ "Internal disturbance" → replaced by " armed rebellion " (44th Amdt).	Dimension 2 □ Alladi Krishnaswami Ayyar: emergency provisions = " life-breath of the Constitution. "
Dimension 3 □ Ambedkar hoped Art 356 would stay a " dead letter " (last resort).	Dimension 4 □ Financial Emergency modelled on the US National Recovery Act 1933 .

STATIC THEORY

- □ **Alladi Krishnaswami Ayyar**: emergency provisions = "**life-breath of the Constitution.**"
- □ Ambedkar hoped **Art 356** would stay a "**dead letter**" (last resort).
- □ Financial Emergency modelled on the US **National Recovery Act 1933**.

MUST-KNOW FACTS

1. "Internal disturbance" → replaced by "**armed rebellion**" (44th Amdt).
2. **Alladi Krishnaswami Ayyar**: emergency provisions = "**life-breath of the Constitution.**"
3. Ambedkar hoped **Art 356** would stay a "**dead letter**" (last resort).
4. Financial Emergency modelled on the US **National Recovery Act 1933**.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Must-Know
Facts

HIGH

Foundation • □ Current link

GS-II Indian
Polity

NEWS TRIGGER

□ □ □ **50 years of the 1975 Emergency (June 2025)** revived debates on democratic safeguards; Art 356 & Governor floor-test controversies keep **Bommai** topical. □ □ For Art 358 vs 359, Bommai's 10 propositions & full contrast tables → advanced/14_Emergency-Provisions.md.

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → [Current link](#)

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than Subject: Polity · Tier: Advanced (exam depth) ·
GS Paper: GS-II

Dimension 2

greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 16 / Part XVIII (direct check of the local Sixth Revised Edition PDF).

Dimension 3

greater than ☐ = from source book · ☐ = inference / case law · ☐ = current affairs.

Dimension 4

greater than Companion: basic/Emergency-Provisions.md.

STATIC THEORY

• greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 16 / Part XVIII (direct check of the local Sixth Revised Edition PDF).

• greater than ☐ = from source book · ☐ = inference / case law · ☐ = current affairs.

• greater than *Companion: basic/Emergency-Provisions.md.*

MUST-KNOW FACTS

1. greater than = from source book · ☐ = inference / case law · ☐ = current affairs.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → [Core Foundation](#)

HIGH

Advanced • Overview

GS-II Indian
Polity

INTRO & ORIGIN

☐ **Part XVIII, Art 352–360.** Purpose: safeguard sovereignty, unity, integrity, security & the Constitution. During an emergency the **federal structure becomes unitary without a formal amendment** — Ambedkar: the Constitution can be "**both unitary and federal according to time and circumstances.**" ☐ **Three types:** National (Art 352), President's Rule / State Emergency (Art 356), Financial (Art 360).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Part XVIII, Art 352–360.** Purpose: safeguard sovereignty, unity, integrity, security & the Constitution. During an emergency the **federal structure becomes unitary without a formal amendment** — Ambedkar: the Constitution can be **"both unitary and federal according to time and circumstances."** **Three types:** National (Art 352), President's Rule / State Emergency (Art 356), Financial (Art 360).

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Overview

HIGH**Advanced · NATIONAL EMERGENCY (Art 352)** □□GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of NATIONAL EMERGENCY (Art 352) □□.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → NATIONAL
EMERGENCY (Art 352) □□

HIGH**Advanced · Constitutional triggers**GS-II Indian
Polity**INTRO & ORIGIN**

□ Declared when security of India (or part) is threatened by **war, external aggression, or armed rebellion** — even on **imminent danger**. **"War/external aggression" = External Emergency; "armed rebellion" = Internal Emergency.** □ **44th Amendment (1978)** replaced **"internal disturbance"** (vague, used in 1975) with **"armed rebellion."** □ **42nd Amdt (1976)** allowed limiting it to **part** of India.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Declared when security of India (or part) is threatened by **war, external aggression, or armed rebellion** — even on **imminent danger**. **"War/external aggression" = External Emergency; "armed rebellion" = Internal Emergency.** **44th Amendment (1978)** replaced **"internal disturbance"** (vague, used in 1975) with **"armed rebellion."** **42nd Amdt (1976)** allowed limiting it to **part** of India.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Constitutional
triggers

HIGH

Advanced · Safeguards (mostly 44th Amendment) □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Safeguard	Rule
□ Recommendation	Only on written recommendation of the Cabinet (not PM alone) — post-1975 fix
□ Parliamentary approval	Within 1 month (was 2), by special majority (was simple)
□ Duration	6 months , renewable indefinitely every 6 months
□ Revocation	President anytime; must revoke if Lok Sabha (simple majority) disapproves; 1/10 of LS members can force a special sitting in 14 days
□ Judicial review	38th Amdt made it immune → deleted by 44th ; *Minerva Mills (1980)* — reviewable for mala fide/perverse

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Safeguards
(mostly 44th Amendment) □

HIGH

Advanced · Effects □

GS-II Indian
Polity

INTRO & ORIGIN

(a) Centre-State: Centre can direct a state on **'any' matter** (states not suspended); Parliament legislates on **State List** (laws lapse 6 months after); President can issue **ordinances on state subjects**; can **modify revenue distribution** (Centre↔states). 42nd Amdt extended executive/legislative effects to **all states**, not just the emergency one. **(b) Lok Sabha & assemblies:** LS term extendable **1 year at a time** (max 6 months after emergency ends) — e.g. **5th Lok Sabha (1971-77)**; same for state assemblies. **(c) Fundamental Rights:** □

Advanced learning layer: concepts → constitutional detail → UPSC application.

EFFECTS □: RECALL MAP

Effects □

Dimension 1 (a) Centre-State: Centre can direct a state on 'any' matter (states not suspended); Parliament legislates on State List (laws lapse 6 months after); P	Dimension 2 □ Art 358 — automatically suspends Art 19 (six freedoms); post-44th Amdt only during
Dimension 3 War/External Emergency & only for laws related to the emergency.	Dimension 4 □ Art 359 — President may suspend enforcement (not the rights themselves) of specified FRs;

STATIC THEORY

- ☐ **Art 358** — **automatically suspends Art 19** (six freedoms); post-44th Amdt **only during
- War/External Emergency* & *only for laws related** to the emergency.
- ☐ **Art 359** — President may **suspend enforcement** (not the rights themselves) of *specified* FRs;
- post-44th Amdt **Art 20 & 21 can NEVER be suspended**.

MUST-KNOW FACTS

- 1. Art 358** — **automatically suspends Art 19** (six freedoms); post-44th Amdt **only during
- 2. Art 359** — President may **suspend enforcement** (not the rights themselves) of *specified* FRs;

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Effects ☐

HIGH**Advanced · Art 358 vs 359 (7 differences)** ☐GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

	Art 358	Art 359
☐ Scope	Only Art 19	Any FR in Presidential Order (except 20, 21)
☐ Operation	Automatic	Needs Presidential Order
☐ Trigger	External Emergency only	External and Internal
☐ Duration	Whole emergency	Period specified
☐ Extent	Whole country	Whole or part

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Art 358 vs 359
(7 differences) ☐

HIGH**Advanced · Declarations (3 times)** ☐GS-II Indian
Polity**INTRO & ORIGIN**

- ☐ **1962** (China/NEFA, till 1968), **1971** (Pakistan war), **1975** (internal disturbance — Indira Gandhi, most controversial). ☐ **Shah Commission** (Janata govt) did not justify 1975 → led to the **44th Amendment 1978**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **1962** (China/NEFA, till 1968), **1971** (Pakistan war), **1975** (internal disturbance — Indira Gandhi, most controversial). **Shah Commission** (Janata govt) did not justify 1975 → led to the **44th Amendment 1978**.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Declarations (3 times) □

HIGH**Advanced · PRESIDENT'S RULE (Art 356) — "State/Constitutional Emergency" □□**

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PRESIDENT'S RULE (Art 356) — "State/Constitutional Emergency" □□.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → PRESIDENT'S
RULE (Art 356) — "State/Constitutional
Emergency" □□

HIGH**Advanced · Grounds**

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 355** = Centre's duty to ensure states run per the Constitution. **Art 356** — President satisfied that state government **"cannot be carried on in accordance with the Constitution"** (on Governor's report **or otherwise**). **Art 365** — state failing to comply with Centre's directions.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Art 355** = Centre's duty to ensure states run per the Constitution. **Art 356** — President satisfied that state government **"cannot be carried on in accordance with the Constitution"** (on Governor's report **or otherwise**). **Art 365** — state failing to comply with Centre's directions.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Grounds

HIGH

Advanced · Approval & Duration □

GS-II Indian
Polity

INTRO & ORIGIN

□ Approval within **2 months**, by **simple majority**. Continues **6 months**, extendable to **max 3 years** (every 6 months). □ **44th Amdt**: beyond **1 year**, extension needs BOTH — (a) a National Emergency in force, and (b) **ECI certifies** elections can't be held.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Approval within **2 months**, by **simple majority**. Continues **6 months**, extendable to **max 3 years** (every 6 months). **44th Amdt**: beyond **1 year**, extension needs BOTH — (a) a National Emergency in force, and (b) **ECI certifies** elections can't be held.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Approval &
Duration □

HIGH

Advanced · Consequences

GS-II Indian
Polity

INTRO & ORIGIN

□ President assumes state government's functions + Governor's powers; **dismisses the CoM/CM**; Parliament exercises state legislature's powers ("**President's Acts**"); assembly **suspended or dissolved**. □ **President CANNOT** take over the **state High Court's** powers.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. President assumes state government's functions + Governor's powers; **dismisses the CoM/CM**; Parliament exercises state legislature's powers ("**President's Acts**"); assembly **suspended or dissolved**. **President CANNOT** take over the **state High Court's** powers.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Consequences

HIGH

Advanced · Bommai case (1994) — 10 propositions

GS-II Indian
Polity

□ □ (very high-yield)

INTRO & ORIGIN

□ Proclamation is **subject to judicial review**; satisfaction must rest on **relevant material** (burden on Centre); court can **restore** a dismissed government; **assembly dissolved only after Parliament approves** (suspend till then); **secularism is a basic feature** (anti-secular govt → Art 356); majority tested on the **floor of the House**; a new Centre can't dismiss opposition state governments; Art 356 is an **exceptional, last-resort** power. □ **Ambedkar** hoped Art 356 would remain a "**dead letter**" / last resort — Kamath: "Ambedkar is dead and the Articles are very much alive." Imposed **125+ times** (often misused).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Proclamation is **subject to judicial review**; satisfaction must rest on **relevant material** (burden on Centre); court can **restore** a dismissed government; **assembly dissolved only after Parliament approves** (suspend till then); **secularism is a basic feature** (anti-secular govt → Art 356); majority tested on the **floor of the House**; a new Centre can't dismiss opposition state governments; Art 356 is an **exceptional, last-resort** power. **Ambedkar** hoped Art 356 would remain a "**dead letter**" / last resort — Kamath: "Ambedkar is dead and the Articles are very much alive." Imposed **125+ times** (often misused).

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Bommai case
(1994) — 10 propositions □□ (very high-yield)

HIGH

Advanced · National Emergency vs President's Rule □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

	National (352)	President's Rule (356)
□ Approval majority	Special	Simple
□ Max duration	Indefinite	3 years
□ State organs	Continue (concurrent Centre power)	Executive dismissed , legislature suspended/dissolved
□ Effect on FRs	Yes	No
□ LS revocation resolution	Yes	No (President only)

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → National
Emergency vs President's Rule □

HIGH

Advanced • FINANCIAL EMERGENCY (Art 360) □

GS-II Indian
Polity

INTRO & ORIGIN

□ Declared if **financial stability/credit of India** is threatened. Approval within **2 months** (simple majority); once approved, continues **indefinitely** (no renewal needed). □ **Effects:** Centre directs states on **canons of financial propriety**; can **reduce salaries** of state employees AND **SC/HC judges** & Union employees; reserve state money bills for President. □ **Never declared** (closest: 1991 crisis). □ Modelled on the US **National Recovery Act 1933** (Great Depression) — per Ambedkar.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Declared if **financial stability/credit of India** is threatened. Approval within **2 months** (simple majority); once approved, continues **indefinitely** (no renewal needed). **Effects:** Centre directs states on **canons of financial propriety**; can **reduce salaries** of state employees AND **SC/HC judges** & Union employees; reserve state money bills for President. **Never declared** (closest: 1991 crisis). Modelled on the US **National Recovery Act 1933** (Great Depression) — per Ambedkar.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → FINANCIAL
EMERGENCY (Art 360) □

HIGH

Advanced • Criticism (Constituent Assembly)

GS-II Indian
Polity

INTRO & ORIGIN

□ **H.V. Kamath** — "foundation of a totalitarian/police state." **K.T. Shah** — "chapter of reaction and retrogression." **T.T. Krishnamachari** — "constitutional dictatorship." **H.N. Kunzru** — threat to states' financial autonomy. □ Defenders: **Alladi Krishnaswami Ayyar** — "**very life-breath of the Constitution**"; **Mahabir Tyagi** — "**safety-valve**."

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **H.V. Kamath** — "foundation of a totalitarian/police state." **K.T. Shah** — "chapter of reaction and retrogression." **T.T. Krishnamachari** — "constitutional dictatorship." **H.N. Kunzru** — threat to states' financial autonomy. Defenders: **Alladi Krishnaswami Ayyar** — "**very life-breath of the Constitution**"; **Mahabir Tyagi** — "**safety-valve**."

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → Criticism
(Constituent Assembly)

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: National Emergency can be declared on "internal disturbance"

CORRECT: replaced by "**armed rebellion**" (44th Amdt).

WRONG: Art 20 & 21 can be suspended in emergency

CORRECT: **never** (post-44th Amdt).

WRONG: Art 358 operates in armed-rebellion emergencies

CORRECT: **only War/External** Emergency.

WRONG: President's Rule needs special majority

CORRECT: **simple majority**; National Emergency needs **special**.

WRONG: President's Rule has no time limit

CORRECT: **max 3 years**; National Emergency **is** indefinite.

WRONG: Financial Emergency needs periodic renewal

CORRECT: **once approved, continues indefinitely**.

WRONG: During President's Rule, President takes over the High Court

CORRECT: **cannot** touch the HC.

MAINS ANGLE

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced • □ CA hooks

GS-II Indian
Polity

NEWS TRIGGER

□ □ □ **50th anniversary of the 1975 Emergency (25 June 2025)** — recurring debate on democratic safeguards; "**Samvidhaan Hatya Diwas**" notified. □ □ Frequent Art 356 & Governor-role controversies (Maharashtra/Delhi floor-test cases) keep **Bommai** doctrine live. □ □ *Financial Emergency* debated but never invoked even amid economic shocks.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → [CA hooks](#)

HIGH**Advanced · Mains angles****GS-II** Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"Emergency provisions make India unitary." Evaluate the federal-unitary balance post-44th Amendment. Bommai and the taming of Art 356 — has judicial review ended the "deadly weapon"? Should Art 20 & 21's non-suspendability be extended to all Fundamental Rights?

STUDY LINK

Emergency Provisions (Articles 352–360) —
ADVANCED / COMPLETE → [Mains angles](#)

End of Register Notes — UPSC Agent / Copilot CLI